



Republic of the Philippines
Province of Laguna
City of Biñan

OFFICE OF THE CITY COUNCIL SECRETARY

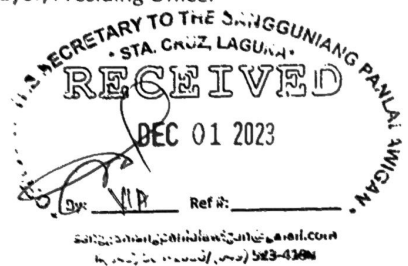
2nd Floor City Annex Bldg., Brgy. Zapote, City of Biñan, Laguna
(049) 513-5063, 513-5064



**ORDINANCE APPROVED BY THE CITY COUNCIL OF BIÑAN, LAGUNA IN ITS REGULAR SESSION
HELD AT THE AMBROSIO RIANZARES BAUTISTA HALL AT CITY HALL ANNEX BUILDING,
BARANGAY ZAPOTE, CITY OF BIÑAN, PROVINCE OF LAGUNA DATED OCTOBER 23, 2023.**

PRESENT:

Hon. ANGELO B. ALONTE	- City Vice Mayor/Presiding Officer
Hon. JONALINA R. REYES	- Councilor
Hon. LIBUNERO O. ALATIIT	- Councilor
Hon. ROMMEL R. DICDICAN	- Councilor
Hon. FLAVIANO D. PECAÑA, JR.	- Councilor
Hon. CHRISTOPHER A. ALBA	- Councilor
Hon. JAYSON A. SOUZA	- Councilor
Hon. ELMARIO B. DIMARANAN	- Councilor
Hon. ALVIN Z. GARCIA	- Councilor
Hon. JOSE FRANCISCO RUBEN P. YATCO	- Councilor
Hon. MA. ANGELICA QUERUBIN A. ALONTE	- SK-Federation President
GERONIMO D. ROMANTIGUE, MDMG	- City Council Secretary



GUESTS:

Aspiring Barangay Officials	- Barangay Biñan
Mr. Jaime M. Salandanan	- Former Councilor
Legislative Staff of the City Government of Biñan	

ABSENT:

Hon. VICTOR L. CARIÑO	- Councilor
Hon. RAFAEL L. CARDEÑO, JR.	- Councilor
Hon. ELVIS L. BEDIA	- Councilor
Hon. RODOLFO C. MONTAÑEZ, JR.	- ABC-Federation President

CITY ORDINANCE NO. 23-(2023)

AN ORDINANCE REGULATING THE USE AND UNAUTHORIZED SALE TO MINORS OF VOLATILE SUBSTANCES FOR THE PURPOSE OF INDUCING INTOXICATION OR IN ANY MANNER CHANGING, DISTORTING OR DISTURBING THE AUDITORY, VISUAL OR MENTAL PROCESS AND PROVIDING PENALTIES FOR VIOLATION THEREOF AND FOR OTHER PURPOSES.

WHEREAS, the Department of Social Welfare and Development launched a program to protect minors from this kind of addiction and is encouraging agencies of the government to undertake programs to strengthen augment this drive;

WHEREAS, it is also imperative to enact a local ordinance that will strengthen the implementation of P.D. 1619 by imposing certain obligations upon the parents or guardians, the local government units, commercial establishments selling any volatile substance (i.e. rugby, etc.) for industrial or any lawful and productive purpose, in order to effectively prevent the commission of said acts, as well as to provide rehabilitation programs for the users/violators of this law which tend to be mostly minors;

WHEREAS, the state and the City of Biñan recognizes the role of the youth in nation-building and shall promote and protect their physical, moral, spiritual, intellectual and social well-being;

WHEREAS, medical research and studies show that the use of such substitutes could cause death, physiological damage to the liver, kidneys, heart, blood and nervous system, induce dependency, self-destructive and anti-social acts while under the influence thereof, and lead to the use of other drugs;

WHEREAS, such habit-forming practice is aggravated by the fact that rugby or similar substance and solvents being non-controlled substance, are easily accessible to a person through hardware store and other business establishments;

WHEREAS, there is an alarming increase of minors using rugby/glue and other volatile substances as substitutes for dangerous drugs.

NOW THEREFORE, be it **ORDAINED** as it hereby **ORDAINED** by the **SANGGUNIAN** **PANLUNGSOD** OF THE CITY OF **BIÑAN**, **LAGUNA** in a session duly assembled the following:

SECTION 1. TITLE. This Ordinance shall be known as “**SELLING VOLATILE SUBSTANCE/SOLVENTS TO MINORS**”.

SECTION 2. SCOPE. This Ordinance shall apply within the territorial jurisdiction of Biñan City, Province of Laguna.

SECTION 3. DEFINITION OF TERMS.

- a. **MINOR** – Any person whose age is below 18 years old; refers to a person below eighteen (18) years of age or over but is unable to fully take care of himself/herself from abuse, neglect, cruelty, exploitation or discrimination because of physical or mental disability.
- b. **SOLVENT** – Is a liquid or gas that dissolves a solid, liquid, or gaseous solute, resulting in a solution. A solvent is a material, usually a liquid, which is capable of dissolving another chemical. Chemicals commonly called solvents can dissolve many different chemicals. Common solvents are water, ethanol, rugby, acetone, hexane and toluene.
- c. **RUGBY** – Refers to the common market name of a liquid chemical compound used as adhesive in making, repairing shoes/furniture and other purposes with an odor akin to petroleum products which can alter the state of mind when sniffed.
- d. **ESTABLISHMENTS** – Any hardware stores, sari-sari stores or any establishments engaged in selling goods and products to include solvents.
- e. **LOGBOOK** – A record book kept by a store or hardware containing information of customer names, address, and purpose of buying a solvent product.

SECTION 4. REGULATORY ACTS.

1. Owners of the commercial stores or business establishments shall be prohibited to sell volatile substances/ solvents such as "rugby" to minors.
2. Minors are prohibited to use or buy "rugby" for addictive purposes.
3. Business establishments are required to maintain a logbook where the name, address and purpose of customer in buying the substance shall be recorded.

SECTION 5. PROHIBITION. The use or possession of solvent based substances and other volatile substances for the purpose of inhalation to induce or produce intoxication is hereby prohibited within the territorial jurisdiction of Biñan City.

It shall likewise be unlawful for any person or owner of hardware store/establishment to sell or to dispense solvent or "rugby" to any minor, unless said minor is accompanied by his/her parents or persons above 18 years old.

SECTION 6. INTERVENTION PROGRAMS AND SERVICES. The minor, if proven hooked or addicted to solvents and or rugby, together with his/her parents, shall be brought to the City Social Welfare and Development Office (CSWDO) for proper case study, counselling and rehabilitation, if necessary.

SECTION 7. IMPLEMENTING GUIDELINES. The City Social Welfare and Development Office is hereby directed and authorized to implement the guidelines in relation to intervention programs and services.

SECTION 8. PENALTY.

A. Any owner of the hardware store or establishment found violating this ordinance shall be meted with the following punishment;

1st OFFENSE. Fine of TWO THOUSAND FIVE HUNDRED PESOS (P2,500.00) and;

2nd OFFENSE: Revocation of business permit.

B. Any person found violating this ordinance shall be penalized with a fine of not less than ONE THOUSAND PESOS (P1,000.00) but not more than THREE THOUSAND PESOS (P3,000.00) or an imprisonment of not less than seven (7) days but not more than (1) month or both fine and imprisonment at the discretion of the court, with subsidiary imprisonment in case of insolvency.

SECTION 9. ENFORCEMENT. The members of the Biñan City PNP, Public Order and Safety Office and Barangay Tanods are hereby directed to ensure the widest dissemination and strict implementation of this Ordinance.

SECTION 10. SEPARABILITY CLAUSE. Any provision or portion of this Ordinance found to be violative of the Constitution or invalid shall not impair the provisions or parts thereof which shall continue to be in force and in effect.

SECTION 11. REPEALING CLAUSE. Ordinances, rules and regulations or parts thereof, which are inconsistent or in conflict with the provisions of this Ordinance, are hereby repealed or modify accordingly.

SECTION 12. EFFECTIVITY CLAUSE. This Ordinance shall take effect upon approval and after publication in the newspapers of general circulation.

UNANIMOUSLY APPROVED.

CERTIFIED CORRECT:



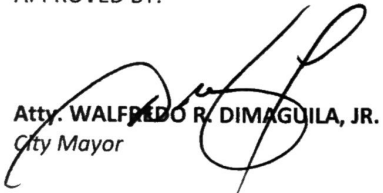
GERONIMO D. ROMANTIGUE, MDMG
City Council Secretary

ATTESTED BY:



Hon. ANGELO B. ALONTE
City Vice Mayor/Presiding Officer

APPROVED BY:



Atty. WALFREDO R. DIMAGUILA, JR.
City Mayor